

As noted above, to be entitled to summary adjudication, a moving party must show that it prevails on “one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty.” (Code Civ. Proc., § 437c (f)(1).) Summary adjudication “shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (*Ibid.*) Here, defendants seek adjudication as to certain aspects of plaintiff’s one cause of action.

Issue 3 seeks to limit the statutes in question to those mentioned in the PAGA notice. Issue 4 seeks to prohibit plaintiff from raising misclassification of employees. Issue 5 seeks to eliminate certain damages because the statutory basis is inapplicable to this case. Issue 6 asserts plaintiff cannot recover any penalties for violations of Labor Code section 558 based on California Supreme authority barring the claim. Issue 7 relates to the one-year time limits for PAGA penalties. Finally, issues 8 and 9 both target the time periods during which defendants had certain payment plans in place.

Defendant would prevail on several of these issues given the correct procedural posture. Indeed, plaintiff even concedes some of the points in the opposition (issue 5, for example). Still, the questions are better suited for motion in limine, motion to strike, or stipulation. None of these issues 3-9 qualifies as completely disposing of a cause of action in conformity with Code of Civil Procedure, section 437c(f). Accordingly, summary adjudication and summary judgment must be denied.

**14. 9:00 AM CASE NUMBER: N25-2451**

**CASE NAME: CLAIM OF:ALLISON HARVEY**

**\*HEARING ON MINOR'S COMPROMISE**

**FILED BY:**

**\*TENTATIVE RULING:\***

The proposed minor’s compromise is **approved**.

**15. 9:01 AM CASE NUMBER: C25-01439**

**CASE NAME: MICO BARGO VS. JORDAN SPIEGEL**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION PROPOUNDED TO DEFENDANT JORDAN SPIEGEL**

**FILED BY: BARGO, MICO**

**\*TENTATIVE RULING:\***

In this motor-vehicle-accident case, plaintiff moves to compel further responses to several requests for production. The motion is **granted in part and denied in part**.

Preliminary Points

Defendant objects that plaintiff has not met the requirement of meeting and conferring. Whether or not a live or telephonic conference was required (the timing is ambiguous), however, plaintiff has provided detailed meet-and-confer letters that adequately cover the disputes, and defendant did not respond substantively to them. It thus appears that if anyone is flunking the spirit of this requirement, it may be defendant, not plaintiff.

The Court also notes that defendant has not provided a responsive Separate Statement as required.

#### RFP 15

This request calls for production of defendant's cell phone records for the time of one hour prior to the accident until three hours after the accident. Besides some transparent makeweight objections, defendant responds that she was not using her cell phone at the time.

If that's true, then there is nothing to be learned from production of phone records. However, plaintiff is correct that he is not required to just take defendant's word for it. The records would establish whether defendant is telling the truth about not being on the phone.

However, plaintiff does not respond to defendant's overbreadth point. It is clearly relevant whether defendant was using her phone at, or immediately prior to, the time of the accident. But plaintiff offers no theory of relevance for calls or texts up to an hour before the accident, let alone for three hours after it.

Defendant must produce relevant cell phone records covering the time from ten minutes before the accident to ten minutes after the accident.

#### RFPs 16 and 19, and the Privilege Log

These requests call for documents relating to communications between defendant and her carrier, or relating to insurance claims concerning this accident. Defendant produced only correspondence between the carrier and plaintiff – not between the carrier and defendant. Defendant's opposition tacitly concedes that this is unresponsive. But defendant correctly points out that producing documents that weren't called for, doesn't establish whether or not plaintiff is entitled to documents that were called for.

Defendant does not try to argue that any part of these document categories would be undiscoverably irrelevant. It objects on grounds of attorney-client privilege and work product (in addition to other asserted "privileges" that do not appear to exist in California).

It may possibly be that there are some privileged or work-product documents among these categories. But there are almost certainly other documents in the categories that are not so protected.

Thus, the issue on these really comes down to the privilege log. The Court agrees that dicta in the case law appear, at least in passing, to call for specific dates for specific documents, though that particular detail wasn't really at issue there. But the real problem here isn't with the dates; it's with the extremely cursory and general description of the substance of the documents. It is simply not possible to ascertain from the privilege log what documents might be protected (and on what basis), and what documents are not.

The Court accordingly deems any privileges that defendant might have properly made as to these documents to have been waived by facially insufficient description in the log. Defendant must produce all responsive documents. The only exception is for direct communications between

defendant and her attorneys, on which the carrier happened to be copied.

Defendant must produce responsive documents, and serve a verified response attesting to that full production, by June 26.

The Court awards sanctions in the amount of \$1,000, payable within 30 days by defendant's counsel to plaintiff's counsel.